

電話/傳真/電傳/電子指示 - 授權及彌償書 (商業賬戶)

To:

Date 日期:

Dear Sirs,
敬啟者:

I/We refer to my/our mandate (the “**Mandate**”) to the Bank in respect of (a) the operation of each account opened in my/our name with the Bank from time to time, (b) the electronic banking services applied for in my/our name with the Bank from time to time and/or (c) the banking facilities and/or other financial accommodation made available to me/us by the Bank from time to time, and/or (d) any banking arrangements or services arranged between the Bank and me/us from time to time.

本人/吾等參照就如下事項向銀行發出的委託書(“**委託書**”)：(a) 運作以本人/吾等的名義在銀行不時開立的賬戶；(b)以本人/吾等的名義在銀行不時使用的電子銀行服務；(c) 銀行不時提供給本人/吾等的銀行融通及/或其它金融服務；及/或 (d) 銀行與本人/吾等不時協議的銀行安排或服務。

Notwithstanding the terms of the Standard Terms and Conditions for Accounts and Services or any agreement or course of dealing between me/us and the Bank, I/we hereby authorise the Bank, but the Bank is not obliged, to rely upon and act in accordance with any instruction, notice, demand or other communication (collectively, the “**Instructions**”, each an “**Instruction**”) which may be, or purport to be, given from time to time by telephone, facsimile, telex, electronic mail or any other forms or devices of electronic communication, whether presently known or developed in the future, by me/us or such person(s) purporting to be my/our current authorised signatory(ies) under the Mandate (or any authorised signatory(ies) subsequently authorised in a duly completed authorisation in the form and manner required by the Bank from time to time) (the “**Authorised Persons**”, each an “**Authorised Person**”) so long as the Instruction has been validly authenticated in accordance with the Bank’s policies and procedures on the validation of such Instructions as in force from time to time. Except as aforesaid, the Bank shall be entitled (but not obliged) to treat each Instruction as fully authorised and binding on us and the Bank shall not be under any obligation to inquire into the authority or identity of the person(s) giving the Instruction.

儘管賬戶及服務標準條款及細則的規定、或本人/吾等與銀行之間的任何協議或交易過程，本人/吾等

特此授權銀行(但銀行無責任) 依賴和按照可能或宣稱是由本人/吾等或在委託書中宣稱為本人/吾等現時的授權簽字人(或期後以銀行不時要求的形式及方式妥為完成的授權書授權的任何獲授權人) (統稱為“獲授權人士”) 的該等人士, 以電話、傳真、電傳、電子郵件或任何其它形式或電子通訊設備(無論是目前已知或未來開發的) 不時作出的任何指示、通知、要求或其它通訊(統稱為“指示”) 行事, 只要該指示已由銀行不時生效的驗證指示是否有效的政策及程序驗證為真實有效。除此之外, 銀行應有權(但無責任) 將每一個指示視為已取得充分授權及對本人/吾等具有約束力, 銀行沒有任何義務查詢發出指示的人士的權限或身份。

Notwithstanding any error, misunderstanding, fraud, forgery or lack of clarity on the terms of the Instruction, the Bank shall be entitled (but not obliged) to take such steps in relation to or in connection with any such Instruction as the Bank may in good faith consider appropriate, including:

不論指示的內容有任何錯誤、誤解、欺詐、偽造或不清楚之處, 銀行應有權(但無責任) 採取任何銀行真誠認為合適的與任何該等指示有關的行動, 包括:

- (a) the utilisation or termination of any banking facility and/or financial accommodation and/or other service provided to me/us;
提取或終止任何銀行授信及/或財務融通及/或向本人/吾等提供的其它服務;
- (b) the opening, operation (including any change in the manner by which Instructions are to be given by me/us) and closing of account;
開立、運作 (包括本人/吾等發出指示的方式的任何變動) 及結清賬戶;
- (c) the payment of any sums, the debiting or crediting of any account;
任何款項的支付、任何賬戶的扣賬或存款;
- (d) the making or sale of any investment and the disposition of any money, securities or other documents;
and
作出或出售任何投資及處理任何金錢、證券或其它文件; 及
- (e) any other action which purports to bind me/us to any agreement or arrangement with the Bank or with any other person or to commit me/us to any type of transaction or arrangement whatsoever, regardless of its nature or the amount of money involved.
任何宣稱使本人/吾等受與銀行或任何其他人士訂立的任何協議或安排所約束、或使本人/吾等承擔無論任何類型的交易或安排的其它行為, 不論交易的性質及涉及的金額。

The Bank may (but shall not be obliged to) require that any Instruction should contain such identifying or test code as the Bank may from time to time specify and I/we shall be solely responsible for any improper use of such identifying and test code.

銀行可以(但無責任) 要求任何指示必須附有銀行不時指定之核對或檢驗碼, 及本人/吾等應自行就不當使用該核對或檢驗碼承擔責任。

I/we further acknowledge and agree that where any Instruction is given by electronic mail or in any other electronic form, no signature from me/us or any of the Authorised Persons is required (except where I/we specifically notify the Bank reasonably in advance that one or more digital signature(s) is/are specifically required) and that the Bank shall be entitled (but not obliged) to treat such Instructions without signature(s) to be absolutely valid and in full force, without any responsibility on its part to verify the identity of the sender(s) as if those Instructions had been duly signed.

本人/吾等進一步確認及同意: 任何以電郵或其它電子形式發出的指示, 無須本人/吾等或任何獲授權

人士的簽名 (除非本人/吾等預先專門合理地通知銀行要求一個或以上的電子簽名), 銀行並可以 (但無責任) 視該等無簽名指示為完全生效及具十足效力, 無需核實發送指示的人士的身份而將該等指示視為已被適當簽署。

The Bank may at its discretion record telephone Instructions by writing and/or tape recording and/or any other method or device and the Bank's record of any such Instruction shall, in the absence of manifest error, be conclusive and binding on me/us.

銀行可自行決定是否需以文書及/或錄音帶及/或任何其它方式或設備記錄電話指示, 並且除非有明顯錯誤, 銀行就任何該等指示之記錄應是終局性的及對本人/吾等具有約束力。

In consideration of the Bank acting in accordance with the terms of this Authorisation and Indemnity and provided that the Bank acts in good faith, I/we irrevocably and unconditionally undertake to indemnify the Bank and its employees, officers and agents against all actions, proceedings, claims, demands, losses, liabilities, damages, costs, charges and expenses of whatever nature which may result or which the Bank may reasonably suffer, incur or sustain directly or indirectly in connection with or arising out of each Instruction, except where and to the extent the same is caused solely and directly by the gross negligence or wilful default of the Bank or its employees, officers or agents. In the event of gross negligence or misconduct on the part of the Bank or its employees, officers or agents, to the maximum extent permitted by applicable law, the liability of the culpable party to me/us will be limited, subject to reasonable proof of loss and causation, to the amount involved in the relevant Instruction. In no event will the Bank or its employees, officers or agents be liable for any incidental, consequential, indirect, special or punitive damages or for loss of profit.

鑒於銀行根據本授權及彌償書條款真誠地行事, 本人/吾等不可撤銷及無條件地承諾, 就直接或間接與每一指示有關或由此產生的, 致使銀行或銀行可能合理地經受、招致或蒙受的所有訴訟、法律程序、權利主張、索付、損失、責任、損害、成本、及任何性質的收費及開支, 給予銀行及其僱員、管理人員和代理人彌償, 除非上述事項及其涉及範圍純粹並且直接由銀行或其僱員、管理人員或代理人的重大疏忽或蓄意行為失當造成的。若銀行或其僱員、管理人員或代理人存在重大疏忽或蓄意行為失當, 在適用法律允許的最大程度範圍內, 過失方對本人/吾等的責任應以有關指示所涉金額為限, 並以合理證明損失及因果關係為前提。在任何情況下, 銀行或其僱員、管理人員或代理人無須就任何附帶的、繼起的、間接的、特別的或懲罰性的損害或利潤損失承擔責任。

The terms of this Authorisation and Indemnity shall remain in full force and effect unless and until the Bank receives, and has a reasonable time to act upon, a notice of termination from me/us in writing signed by me/us (or where we are a company, by a duly authorised officer). I/We acknowledge that I/we will not be released from my/our liability under this Authorisation and Indemnity in respect of any act performed by the Bank in accordance with the terms of this Authorisation and Indemnity prior to the expiry of such reasonable time after service of a notice of termination.

除非並直至銀行收到由本人/吾等簽署 (或如果吾等是公司, 則由獲授權管理人員簽署) 之書面撤銷通知並有合理時間作出相應行動, 本授權及彌償書將維持十足的效力及作用。本人/吾等確認送達撤銷通知並不免除本人/吾等在撤銷通知書送達之後的上述合理時間屆滿前, 對有關銀行根據本授權及彌償書條款做出任何行為所應承擔的在本授權及彌償書項下的賠償責任。

Where this Authorisation and Indemnity is signed by more than one person, the liabilities and obligations of each of us shall be joint and several.

若本授權及彌償書由多於一人簽署, 吾等每一位人共同及各別地承擔責任及義務。

This Authorisation and Indemnity shall be governed by and construed in accordance with the laws of the Hong Kong Special Administrative Region of the People's Republic of China ("**Hong Kong**"). I/we hereby submit to the exclusive jurisdiction of the courts of Hong Kong. For the avoidance of doubt, the Bank shall not be prevented from taking proceedings relating to this Authorisation and Indemnity in any other courts with jurisdiction. To the extent allowed by applicable law, the Bank may take concurrent proceedings in any number of jurisdictions.

本授權及彌償書受中華人民共和國香港特別行政區（“**香港**”）法律管轄，並按香港法律解釋。本人/吾等謹此接受香港法院的專屬管轄。為免生疑問，銀行不應被限制在任何其它有管轄權的法院就本授權及彌償書提起訴訟。在任何適用法律允許的範圍內，銀行可在任何多個司法管轄區同時進行訴訟。

The English version of this Authorisation and Indemnity shall prevail.

本授權及彌償書以英文版為準。

Yours faithfully 此致

For and on behalf of 代表

Signature(s) 簽署

Name(s) and Title(s) 姓名及職銜:

Remark 备注: